

Sex and violence: On the judiciary, Indians and marriage

Marriage should not provide **immunity** for sexual violence

A recent **ruling** by the Chhattisgarh High Court, which **held** that “unnatural sex” by a husband in marriage is not an offence, heavily **relies on** the **presumption of consent** within a **marital** relationship. The case involved a 40-year-old man from Bastar district who had been **convicted** by a sessions court in connection with the death of his wife in 2017. The sessions court found that **the wife**, in her 30s, **fell** ill and subsequently died **following** a forced physical relationship. However, on appeal, the High Court **acquitted** the husband. **At the core** of any discussion on marriage, or any relationship, must be the **principle of consent**. When physical harm occurs, especially **leading to** a tragic death, it cannot be excused under the presumption of marital consent. The issue **at hand** is not about the nature of the sexual act but the absence of consent and the use of force. The High Court relied on Exception II of Section 375 of the Indian Penal Code, which does not recognise marital rape as an offence unless the wife is under 15 years old — the Supreme Court of India raised this age to 18 in the Independent Thought vs Union of India & Anr. case (2017) — to justify acquitting the husband. This **overturned** the sessions court’s **verdict**, which had **sentenced** him to 10 years of **rigorous imprisonment**.

The ruling once again brings attention to the **ambiguous** legal **terrain** surrounding sexual violence in marriage. In October 2024, the Supreme Court **deferred hearings** on **pleas to criminalise** marital rape. In previous judgments, it had indicated that the responsibility **lies** with the **legislature** to introduce laws on this issue. The Union government has also **stated** that criminalising marital rape could “**undermine the institution of marriage**”. India remains one of the few countries where marital rape is not a criminal offence. Yet, **data** from the National Family Health Survey 5 (2019-2021) **reveal** that **32%** of ever-married women aged 18 to 49 years in India **have** experienced physical, sexual, or emotional **spousal** violence, with only a small percentage **seeking** help. This **stark** reality should serve as a **wake-up call** for lawmakers, law enforcement, and society **at large** to take urgent action in ensuring women can live free from violence and fear. While constitutional **safeguards** on life, **liberty**, equality, and **dignity** exist, and laws are **in place** to protect women, true change requires a shift in societal attitudes and mindsets. **No relationship**, marriage included, **should** provide immunity for violence.

[Practice Exercise]

- Red/blue coloring of words in the sentence indicates subject verb relationship; where ‘red’ denotes ‘subject’ and ‘blue’ denotes ‘verb’.

Vocabulary

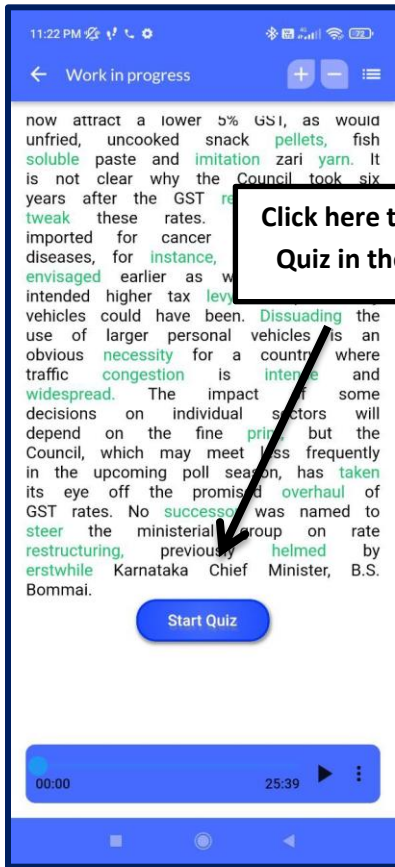
1. **Immunity** (noun) – Exemption, Protection, Privilege, Indemnity, Freedom छूट/प्रतिरक्षा
2. **Ruling** (noun) – Judgment, Decision, Verdict, Decree, Order निर्णय
3. **Hold** (verb) – Declare, State, Assert, Maintain, Affirm कहना
4. **Rely** (on) (verb) – Depend, Trust, Count, Bank, Lean भरोसा करना
5. **Presumption** (noun) – Assumption, Supposition, Belief, Expectation, Hypothesis धारणा
6. **Consent** (noun) – Agreement, Approval, Permission, Assent, Authorization सहमति
7. **Marital** (adjective) – Conjugal, Matrimonial, Nuptial, Wedded, Spousal वैवाहिक
8. **Convict** (verb) – Sentence, Condemn, Find guilty, Judge, Punish दोषी ठहराना
9. **Following** (preposition) – After, Subsequent to, Next to, Behind, In the wake of के बाद
10. **Acquit** (verb) – Clear, Exonerate, Absolve, Free, Discharge बरी करना
11. **At the core** (phrase) – Fundamentally, Essentially, Centrally, Primarily, Basically मूल रूप से
12. **Principle** (noun) – Rule, Standard, Doctrine, Tenet, Ethic सिद्धांत
13. **Consent** (noun) – Agreement, Approval, Permission, Assent, Authorization सहमति
14. **Lead** (to) (verb) – Result in, Cause, Bring about, Trigger, Produce वजह बनना
15. **At hand** (phrase) – Present, Immediate, Current, Pending, Under consideration वर्तमान में
16. **Overturn** (verb) – Reverse, Overrule, Cancel, Nullify, Quash पलटना
17. **Verdict** (noun) – Judgment, Decision, Ruling, Finding, Conclusion फैसला
18. **Sentence** (verb) – Punish, Condemn, Convict, Penalize, Judge सजा सुनाना
19. **Rigorous** (adjective) – Strict, Severe, Harsh, Stringent, Tough कठोर
20. **Imprisonment** (noun) – Incarceration, Detention, Confinement, Custody, Jail कारावास
21. **Ambiguous** (adjective) – Unclear, Vague, Indistinct, Obscure, Doubtful अस्पष्ट
22. **Terrain** (noun) – Area, Field, Domain, Sphere, Landscape क्षेत्र
23. **Defer** (verb) – Postpone, Delay, Adjourn, Suspend, Hold off टालना

24. **Hearing** (noun) – Trial, Session, Proceeding, Inquiry, Case सुनवाई
25. **Criminalise** (verb) – Outlaw, Prohibit, Ban, Penalize, Forbid अपराधीकरण करना
26. **Lie** (verb) – Rest, Reside, Exist, Be situated, Dwell स्थित होना
27. **Legislature** (noun) – Parliament, Assembly, Congress, Council, Lawmaking body विधानमंडल
28. **State** (verb) – Declare, Assert, Affirm, Express, Announce कहना
29. **Undermine** (verb) – Weaken, Sabotage, Erode, Damage, Destabilize कमजोर करना
30. **Institution** (noun) – Custom, ritual, Tradition, Practice प्रथा, रीति
31. **Spousal** (adjective) – Marital, Conjugal, Matrimonial, Nuptial, Wedded पति-पत्नी संबंधी
32. **Seek** (verb) – Pursue, Search, Aim, Strive, Attempt तलाश करना
33. **Stark** (adjective) – Harsh, Severe, Blunt, Grim, Clear कठोर
34. **Wake-up call** (noun) – Alert, Warning, Reminder, Alarm, Signal चेतावनी
35. **At large** (phrase) – In general, Overall, Broadly, Widely, Universally समग्र रूप से
36. **Safeguard** (noun) – Protection, Defense, Security, Shield, Precaution सुरक्षा
37. **Liberty** (noun) – Freedom, Independence, Autonomy, Right, Privilege स्वतंत्रता
38. **Dignity** (noun) – Respect, Honor, Self-esteem, Pride, Integrity गरिमा
39. **In place** (phrase) – Established, Set up, Ready, Functional, Operational लागू

Summary of the Editorial

1. **Chhattisgarh High Court Ruling:** The court acquitted a husband accused of causing his wife's death through forced "unnatural sex," citing marital consent.
2. **Presumption of Consent:** The ruling relied on the presumption of consent within marriage, ignoring the absence of actual consent and use of force.
3. **Sessions Court Verdict:** The lower court had sentenced the husband to 10 years of rigorous imprisonment for his wife's death following a forced physical relationship.
4. **Exception II of Section 375 IPC:** The High Court used this provision, which excludes marital rape as an offence unless the wife is under 18, to justify the acquittal.
5. **Supreme Court's Stance:** In 2017, the Supreme Court raised the age of consent in marital rape cases to 18 but deferred hearings on criminalising marital rape in 2024.
6. **Legislative Inaction:** The Supreme Court has indicated that the responsibility to criminalise marital rape lies with the legislature, not the judiciary.
7. **Government's Position:** The Union government argues that criminalising marital rape could "undermine the institution of marriage."
8. **Global Context:** India remains one of the few countries where marital rape is not a criminal offence.
9. **NFHS-5 Data:** 32% of ever-married women aged 18-49 in India have experienced physical, sexual, or emotional spousal violence, with few seeking help.
10. **Societal Attitudes:** True change requires a shift in societal mindsets, beyond legal reforms, to ensure women's safety and dignity.
11. **Constitutional Safeguards:** While constitutional rights to life, liberty, equality, and dignity exist, they are insufficient without addressing marital rape.
12. **Violence in Marriage:** No relationship, including marriage, should provide immunity for sexual violence or physical harm.
13. **Call for Urgent Action:** Lawmakers, law enforcement, and society must act urgently to protect women from violence within marriages.
14. **Legal Ambiguity:** The ruling highlights the ambiguous legal framework surrounding sexual violence in marriage in India.
15. **Need for Reform:** Criminalising marital rape is essential to align India's laws with the principles of consent, equality, and justice.

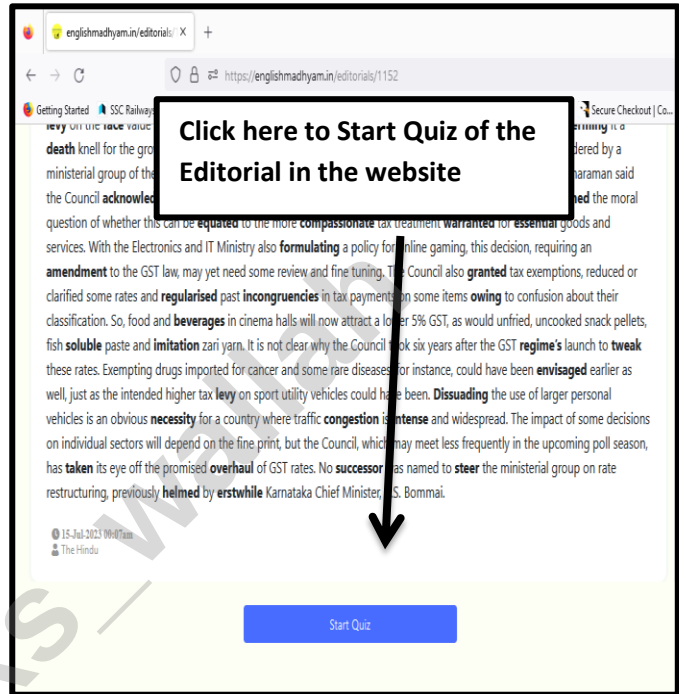
Practice Exercise: SSC Pattern Based



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